

		Defendants have not shown these causes of action are so duplicative it would “completely dispose of a cause of action.” (Code Civ. Proc., § 437c, subd. (f)(1).) Nor have Defendants demonstrated there is no triable issue of fact whether the issues raised by Plaintiff interfered with Plaintiff’s right to use and enjoy the Property. The Court DENIES summary adjudication of the sixth cause of action.
7	Troung v. Batalla 2023-0130672 Motion for terminating sanctions - Denied	Defendant’s Motion for terminating sanctions is DENIED. Defendant moved for terminating sanctions on January 29, 2026. The hearing was originally set for May 18, 2026. The Court continued the hearing and ordered Defendant to properly serve Plaintiff. Defendant served the Motion by electronic service only. California Rules of Court rule 2.251(c)(3)(B) provides that self-represented parties “are to be served by non-electronic methods unless they affirmatively consent to electronic service.” Similarly, Code of Civil Procedure section 1010.6 subdivisions (b)(1) and (f)(2) provide that unrepresented persons are exempt from mandatory electronic filing and service. There is no indication Plaintiff has affirmatively consented to electronic service. Defendant has not filed a new proof of service. Thus, Defendant has not complied with the Court’s order. Defendant shall give notice.
8	Sheehy v. Chicago Title Insurance Company 2020-01146716 Motion for New Trial	Defendant, Chicago Title Ins. Co.’s motion for new trial is DENIED. Plaintiff’s request for attorney fees is DENIED. The cause of action does not accrue until discovery of the loss that may be incurred if the title is not as represented in the policy.” (<i>Lee v. Fidelity National Title Ins. Co.</i> (2010) 188 Cal.App.4th 583, 599–600. Plaintiff correctly asserts that under case law applying section 339 to title insurance claims, a plaintiff must be aware of facts which would cause them to believe there was a potential loss under the policy. Here, such a discovery would require knowledge not merely of the neighbors’ encroaching porch, but that there was an underlying easement or other legal risk affecting Plaintiff’s title to the property.